

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Katherine White	Team: Squad #5	CCRB Case #: 202002169	☐ Force	☐ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Saturday, 03/14/2020 8:45 PM	Location of Incident: 79th Precinct stationhouse	Precinct: 79	18 Mo. SOL 9/14/2021	EO SOL 5/1/2022	
Date/Time CV Reported Mon, 03/16/2020 4:28 PM	CV Reported At: CCRB	How CV Reported: Call Processing System	Date/Time Received at CCRB Mon, 03/16/2020 4:28 PM		

Complainant/Victim	Type	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. SGT Akil Guy	03541	954274	079 PCT
2. SGT Frederick Manney	04797	949938	079 PCT

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. POM Mohamed Elhanafi	15082	955897	079 PCT
2. POM Michael Zweifler	14406	961483	079 PCT
3. POM Hinolito Inoa	16168	960709	079 PCT
4. POM Anthony Davila	14220	956571	GVSD Z1
5. POM Patrick Reilly	16493	957993	079 DET
6. POM Jarrett Nadal	19273	958970	GVSD Z1
7. POM Antonio Zorrilla	10893	961480	NARCBBN
8. LT Henry Daverin	00000	945645	094 PCT

Officer(s)	Allegation	Investigator Recommendation
A.SGT Akil Guy	Abuse: Sergeant Akil Guy refused to provide his name to § 87(2)(b)	
B.SGT Frederick Manney	Abuse: Sergeant Frederick Manney searched the vehicle in which § 87(2)(b) was an occupant.	
C.SGT Frederick Manney	Abuse: Sergeant Frederick Manney damaged § 87(2)(b)'s property.	
§ 87(2)(g), § 87(4-b)		

Case Summary

On March 16, 2020, § 87(2)(b) filed this complaint by phone with the CCRB (**BR02**).

On March 14, 2020, at approximately 8:45 p.m., § 87(2)(b) arrived at the 79th Precinct stationhouse. Shortly before that time, § 87(2)(b)'s cousin had called him and told him that he and other people were in a van that § 87(2)(b) drives for work, that officers were arresting them, and that the officers were going to take the van to the 79th Precinct stationhouse. § 87(2)(b) went to the 79th Precinct stationhouse to pick up the van. Officers arrested § 87(2)(b) when he arrived and identified himself as the owner of the van, as they had found a Taser, a knife, live ammunition, and marijuana in the van. Sergeant Akil Guy of the 79th Precinct allegedly refused to provide his name to § 87(2)(b) once he was lodged in the cells (**Allegation A: Abuse of Authority**, § 87(2)(g)). Sergeant Frederick Manney of the 79th Precinct supervised an extensive search the van at the stationhouse (**Allegation B: Abuse of Authority**, § 87(2)(g)). Officers allegedly caused damage to the van's interior during the search (**Allegation C: Abuse of Authority**, § 87(2)(g)). § 87(2)(g), § 87(4-b) was arrested for § 87(2)(b) (BR01).

The investigation obtained BWC footage (**BR06-17**, summarized at **BR18**). The investigation also obtained CCTV footage from the stationhouse (**BR19-23**, summarized at **BR24**). The investigation also obtained cellphone footage from § 87(2)(b) depicting the alleged damage to the van's interior (**BR25-27**, summarized at **BR28**). § 87(2)(g), § 87(4-b)

§ 87(2)(g)

Sgt. Manney has since been reassigned to the 90th Precinct.

Findings and Recommendations

Allegation (A) Abuse of Authority: Sergeant Akil Guy refused to provide his name to § 87(2)(b)

§ 87(2)(b) testified (**BR03**) that Sgt. Guy walked into the cell area after he was arrested and lodged in a cell. § 87(2)(b) asked Sgt. Guy for his name, and Sgt. Guy walked out of the cells and did not answer him or otherwise provide his name.

The stationhouse CCTV footage (**BR22**) captures officers lodging § 87(2)(b) in a cell. Shortly after (59:46), Sgt. Guy enters the cell area briefly, has a conversation with the individuals in the cell for about 60 seconds, and then leaves the cells. The footage does not have audio. There is no BWC footage capturing this interaction, § 87(2)(g).

Sgt. Guy was not interviewed until nearly 17 months after the incident. He testified (**BR04**) that he did not recall if § 87(2)(b) ever asked him for his name or shield number in the cells. He testified that, in general, he "always" provides his name and shield number upon request, and he denied that would ever refuse to provide the information upon request.

§ 87(2)(g)

Allegation (B) Abuse of Authority: Sergeant Frederick Manney searched the vehicle in which § 87(2)(b) was an occupant.

Allegation (C) Abuse of Authority: Sergeant Frederick Manney damaged § 87(2)(b)'s property.

As previously noted, officers arrested a number of individuals whom they found smoking marijuana inside § 87(2)(b) van. Officers found a Taser, a knife, live ammunition, and marijuana in the van. It is undisputed that Sgt. Manney supervised an extensive search of the van after bringing it back to the stationhouse parking lot.

§ 87(2)(b) testified that he found various amounts of damage inside the van when he regained possession of it. He alleged that officers broke a “decorative panel” on the driver’s-side door, leaving it “hanging off” the door, broke off an armrest on the second row of passenger seats, removed screws and a plate from the back panel of a studio audio amplifier in the van’s trunk, broke off a handle on the amplifier, pulled out a vent on the van’s interior ceiling and left the fabric around the edge of the vent “pulled out,” broke interior lights in the van such that they would not turn on, removed a camera attached to the van’s exterior, damaged a long, central panel on the van’s interior ceiling such that it was hanging lower than its original position, and damaged plastic panels above the driver and front passenger seats such that they were hanging lower than their original positions.

§ 87(2)(b) provided three cellphone videos (BR25-27) documenting the alleged damage to the van’s interior, property inside the van, and its exterior. At 00:00, Video #1 (BR25) captures a panel on the driver’s side door hanging off the door by a wire. § 87(2)(g)

At 01:12, the video captures a detached armrest, originally from the right side of the second row of passenger seats, sitting loose on the van’s seat. § 87(2)(b) states that officers “ripped the arm off the seat.” § 87(2)(g)

At 01:53, there is a small amount of loose fabric or other material visible around a roof air vent. § 87(2)(b) then focuses on a panel on the roof, says aloud that it appears as if officers had attempted to remove it, and says that certain lights do not function. He then focuses on other elements in the roof and remarks that they appear to have been pulled down. § 87(2)(g)

§ 87(2)(b). In Video #2 (BR26), § 87(2)(b) views a piece of audio equipment and notes that a back panel of the unit has been removed. He then notes that a camera normally mounted on the rear has been removed and placed in the trunk area. § 87(2)(g)

During the video, § 87(2)(b) makes remarks indicating that he is documenting the state of the vehicle at least in part to show that officers had searched it. In Video #3 (BR27), § 87(2)(b) focuses upon a piece of audio equipment and notes that a handle has been removed and panels have been unscrewed.

BWC footage captured both an initial search officers conducted at the scene of the arrests, in which they found the live bullet, knife, and Taser (BR06), and a more exhaustive search of the entire vehicle later at the stationhouse parking lot (BR07; 09; 11). As noted above, Sgt. Manney did not activate his BWC. The footage confirms that officers removed at least one plastic grille from a ceiling vent, removing the interior door panels, and removing items from the trunk space.

Sgt. Manney was not interviewed until 18 months after the incident (BR05). He testified that he determined a detailed search of the vehicle was necessary because of the weapons and contraband officers had already found inside. He also noted that the presence of the marijuana in particular gave officers the right to search any areas where more marijuana could be hidden, including compartments, vents, and areas which could be “removed” or “broken into.” He noted that the van was in “poor condition,” and that it was “beat up,” “very dirty,” “smelled of marijuana,” and had “garbage all over it.” He could not recall if he or any officer damaged any part of the vehicle during the search. He reviewed twelve screenshots

from § 87(2)(b) cellphone footage (**BR31**) showing areas that § 87(2)(b) had implied were damaged in the footage. Sgt. Manney stated that he did not cause any of the alleged damage documented in those images and did not observe any other officer cause the alleged damage. Sgt. Manney reviewed BWC footage showing an officer removing a ceiling vent, and he confirmed that such a search would be typical procedure when attempting to locate contraband or weapons in a vehicle.

§ 87(2)(g)

An odor of marijuana emanating from a vehicle gives officers sufficient justification to search the entire vehicle and its occupants. *People v. Chestnut*, 43 A.D.2d 260 (1974) (**BR29**). Officers who locate weapons or contraband in a vehicle have probable cause to search the vehicle for additional evidence under the “automobile exception” to the warrant requirement. The justifications for such a search do not dissipate merely because the vehicle has been impounded and searched after removal to a police station. *People v. Blasich*, 73 N.Y.2d 673 (1989) (**BR30**).

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g), § 87(4-b)

Civilian and Officer CCRB Histories

- This is the first complaint to which § 87(2)(b) has been a party (**BR**).
- Sergeant Akil Guy has been a member of the NYPD for 9 years and has been a subject in seven CCRB complaints and 19 allegations, none of which were substantiated. § 87(2)(g)
- Sergeant Frederick Manney has been a member of the NYPD for ten years and has been a subject in 15 CCRB complaints and 49 allegations, of which five were substantiated:
 - 201903851 involved a substantiated allegations of search of premises and failure to provide RTKA card against Sgt. Manney. The Board recommended Charges, and the NYPD has not yet imposed discipline.
 - 201907401 involved substantiated allegations of search of premises against Sgt. Manney. The Board recommended Charges, and the NYPD imposed Formalized Training.

Mediation, Civil, and Criminal Histories

- This complaint was not suitable for mediation.
- As of February 7, 2022, the New York City Office of the Comptroller has no record of a Notice of Claim being filed in regards this to complaint (**BR**).

• [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]
[REDACTED]

Squad: 5

Investigator:	<u>Katherine White</u>	<u>Inv. Katherine White</u>	<u>March 18, 2022</u>
	Signature	Print Title & Name	Date

Squad Leader:	<u>Daniel Giansante</u>	<u>IM Daniel Giansante</u>	<u>March 18, 2022</u>
	Signature	Print Title & Name	Date

Reviewer:	<u></u>	<u></u>	<u></u>
	Signature	Print Title & Name	Date